



DECISION

Complaint No. : POS/6390/2023/Adv-M and ~~three~~ other complaints

Name and address of the complainant : Mr. Abdul Rehman and two others residents of Karachi

Name of the Agency Complained against : Karachi Metropolitan Corporation

Name & Designation of Investigating Officer : Mir Hussain Ali Advisor-M

Vetted by :

Subject : DELAY IN APPOINTMENT AGAINST DECEASED QUOTA.

Complaint:

The complainants Rameez Khan s/o Muhammad Rasheed Khan, Abdul Rehman s/o Azeem Khan and Sumairuddin s/o Badruddin, all sons of deceased employees of Karachi Medical & Dental College, have filed their complaints against the Karachi Medical & Dental College administration, as they were not being appointed against the deceased quota. They requested the intervention of this Institution.

The detail of the three others complaints are as follows:-

S.No.	Name of Complainants	Complaint No.
1	Mr. Abdul Rehman	POS/6390/2023/Adv-M
2	Mr. Sumairuddin	POS/7372/2023/Adv-M
3	Mr. Rameez Khan	POS/7379/2023/Adv-M

Proceedings:

2. These complaints after being admitted for investigation under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh, 1991 were referred to the Principal, Karachi Medical & Dental College and the Senior Director (HRM) Karachi Metropolitan Corporation for comments.

3. The Principal and Chairperson Academic Council of Karachi Medical & Dental College, vide her three letters dated 23 October 2023 has reported that in an informal meeting in which the office bearers of the CBA were also present, the qualifications of the applicants applying for appointment against deceased quota were evaluated. She further stated that the KMDC administration submitted a Summary to the Mayor Karachi who is the Chairman of the Governing Body recommending the appointment of the applicants against the deceased quota, but the matter was referred to the Governing Body of the KMDC by the Mayor.

4. She further reported that another Summary has been submitted to the Metropolitan Commissioner, KMC, vide letter number PSCTT/KMDC/372/23 dated 4th September 2023, recommending the cases of the applicants for appointment against the deceased quota.

5. Irrespective of the above proceedings, the matter regarding appointments against deceased quota was ordered upon by the Supreme Court of Pakistan on 26.9.2024, that this provision is in violation of the Constitution. In compliance of this order the SGA&C Department, Government of Sindh vide Notification No. SORI/ (SGA&CD)2-25/2024 dated 19.12.2024, omitted the relevant Rule from the Sindh Civil Servants (Appointment, Promotion & Transfer) Rules 1974. The Law Department, Government of Sindh based on this Notification issued a circular No. D.Q.1.(12)/2024/ 220 dated 26th December 2024 declared all pending cases of appointment against deceased quota, as null and void.

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8. However, on 2.9.2025, the Supreme Court decided that their order dated 26.9.2024 would be applicable prospectively and not retrospectively. In compliance of these orders of the Supreme Court of Pakistan dated 2.9.2025, the SGA&CD Department, Government of Sindh amended the Sindh Civil Servant (Appointment, Promotion & Transfer) Rules 1974 by inserting a provision through Notification No. SORI(SGA&CD)2-2/2024 dated 11.12.2025 that only those cases of deceased quota, conclusively decided by the High Court of Sindh prior to the judgement of the Supreme Court dated 26.9.2024 shall be considered under the provisions of omitted Rule 11-A.

Findings.

7. From the above proceedings it is clear that these four complaints cannot be considered on merit as decided by the Supreme Court on 26.9.2024, that such recruitment is unconstitutional. Further they do not fall within the ambit of the Notification dated 11.12.2025 issued by SGA&CD, which states that only those cases which have been conclusively decided by the High Court can be considered.

Decision.

8. As such the above findings clearly indicate that in these four complaints the grievances of the complainants cannot be redressed, as appointments against deceased quota have been termed "unconstitutional" in its judgment dated 26.9.2024 of Supreme Court of Pakistan. Therefore these four complaints are consigned to record.

"Given under my hand and seal of office"

Sd/-
(Muhammad Sohail Rajput)

Sitara-e-Imtiaz, PAS
OMBUDSMAN SINDH

Karachi, dated 08th January, 2026

